



PODCAST APPEARANCE & RELEASE AGREEMENT

Scotti Brothers Can't Make This Up! Podcast

c/o Scotti Brothers Ent, LLC
1239 Peachtree Street NW, Suite 1910
Atlanta, GA 30309

This Podcast Appearance & Release Agreement ("Agreement") is entered into as of the date of the Guest's signature below ("Effective Date"), by and between **Scotti Brothers Ent LLC, d/b/a Scotti Brothers "Can't Make This Up!" Podcast** ("Producer"), and the individual identified below ("Guest"). Producer and Guest may each be referred to as a "Party" and collectively as the "Parties."

GUEST INFORMATION

NAME:		ADDRESS:	
PHONE:		EMAIL:	

1. PURPOSE AND APPEARANCE

Guest agrees to participate in an audio and/or video recording for the Scotti Brothers "Can't Make This Up!" Podcast (the "Program"). Guest understands that the appearance may include interviews, conversations, photographs, video recordings, audio recordings, livestreams, behind-the-scenes footage, and related production activities. Producer is under no obligation to record, broadcast, publish, or otherwise use any portion of Guest's appearance.

2. GRANT OF RIGHTS

Guest hereby grants to Producer, its successors, licensees, assigns, and authorized representatives a perpetual, irrevocable, worldwide, royalty-free, transferable and sublicensable right and license to record, photograph, reproduce, edit, adapt, publish, distribute, exhibit, broadcast, stream, transmit, advertise, promote, and otherwise use Guest's name; professional or stage name; image and likeness; voice; statements and interview responses; biographical information provided by Guest; and Guest's appearance and performance during the recording, in connection with the Program and its promotion, distribution, advertising, marketing, archival, educational, and other legitimate business purposes. This authorization applies to all media and formats now known or later developed, including television, radio, podcasts, websites, streaming platforms, social media, mobile applications, digital advertising, print, and other electronic or physical media.

3. OWNERSHIP OF RECORDINGS AND PRODUCTION MATERIALS

Producer shall own all right, title, and interest in and to the recordings and production materials created by or on behalf of Producer in connection with Guest's appearance, including audio recordings, video recordings, photographs, edited episodes, excerpts, promotional clips, trailers, thumbnails, graphics, transcripts, captions, and other derivative production materials. Guest retains ownership of Guest's pre-existing intellectual property, trademarks, copyrighted works, music, photographs, logos, and other materials that Guest owned or controlled before the appearance. Nothing in this Agreement transfers ownership of Guest's pre-existing intellectual property to Producer.

4. EDITING, DISTRIBUTION AND PROMOTION

Guest acknowledges and agrees that Producer has complete editorial discretion regarding the recording and final production. Producer may edit, arrange, shorten, combine, excerpt, caption, subtitle, translate, or otherwise modify the recording for production, editorial, technical, accessibility, promotional, or distribution purposes, provided that Producer does not knowingly create a materially false or misleading representation that Guest actually made a statement that Guest did not make. Producer may create clips, excerpts, photographs, promotional graphics, trailers, social-media content, advertisements, and other promotional materials from the Guest's appearance. Producer has no obligation to use or publish any particular recording, statement, photograph, or portion of the appearance.

5. COMPENSATION

Unless the Parties expressly agree otherwise in a separate written agreement signed by both Parties, Guest's participation is voluntary and without compensation. Guest acknowledges that Guest is not entitled to appearance fees, royalties, residuals, advertising revenue, licensing revenue, or other compensation solely as a result of participating in the Program or the subsequent use or distribution of the recording. Any separate compensation arrangement must be established in a written agreement signed by Producer and Guest.



PODCAST APPEARANCE & RELEASE AGREEMENT

Scotti Brothers Can't Make This Up! Podcast

c/o Scotti Brothers Ent, LLC
1239 Peachtree Street NW, Suite 1910
Atlanta, GA 30309

6. GUEST REPRESENTATIONS AND WARRANTIES

Guest represents and warrants that: (1) Guest has the legal capacity and authority to enter into this Agreement; (2) Guest's participation does not violate any agreement or obligation to another person, company, employer, manager, agency, label, publisher, or other entity; (3) Guest has the authority to provide any materials submitted to Producer for use in connection with the Program; (4) Guest will not knowingly provide material that infringes the copyright, trademark, publicity, privacy, or other rights of a third party; and (5) Guest will notify Producer before recording of any material restriction or contractual obligation that may affect Guest's participation. If Guest is represented by a manager, agent, attorney, publicist, or other representative, Guest represents that Guest has authority to participate and enter into this Agreement.

7. RECORDING, ARTIFICIAL INTELLIGENCE AND DIGITAL PRODUCTION TOOLS

Guest expressly consents to the recording of Guest's voice, image, likeness, and appearance in connection with the Program. Guest further acknowledges that Producer may use reasonable technological tools, including artificial-intelligence-assisted tools, for legitimate production purposes such as transcription, captioning, subtitles, translation, accessibility, search and indexing, content organization, editing assistance, and preparation of promotional or production materials. Producer will not knowingly create or distribute a materially deceptive synthetic representation of Guest, including a fabricated endorsement or statement falsely presented as having been made by Guest, without Guest's additional authorization.

8. RELEASE OF CLAIMS AND LIMITATION OF LIABILITY

To the fullest extent permitted by applicable law, Guest releases and agrees not to bring claims against Producer, its owners, officers, employees, contractors, representatives, affiliates, successors, licensees, and assigns arising solely from the authorized recording, editing, publication, distribution, promotion, or use of Guest's appearance pursuant to this Agreement. This release includes claims relating to the authorized use of Guest's name, image, likeness, voice, or statements, including claims based upon publicity, privacy, or similar rights, except to the extent such claim cannot lawfully be waived or results from Producer's willful misconduct or other conduct for which liability cannot legally be released. Nothing in this Agreement is intended to waive any right or remedy that applicable law prohibits the Parties from waiving.

9. GOVERNING LAW AND VENUE

This Agreement shall be governed by and construed in accordance with the **laws of the State of Georgia**, without regard to its conflict-of-laws principles. To the extent permitted by applicable law, any dispute arising out of or relating to this Agreement shall be brought in a court of competent jurisdiction located in the State of Georgia.

10. ENTIRE AGREEMENT; AMENDMENTS

This Agreement constitutes the entire agreement between the Parties concerning Guest's participation in the Program and supersedes any prior oral or written discussions or understandings concerning the same subject matter. Any amendment, modification, waiver, or addition to this Agreement must be in writing and accepted by both Parties. If any provision of this Agreement is determined to be invalid or unenforceable, the remaining provisions shall remain in full force and effect to the fullest extent permitted by law. A failure by either Party to enforce any provision of this Agreement shall not constitute a waiver of that provision or the right to enforce it in the future.

